

Tentative Rulings for Department 403

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Tentative Ruling

Re: **Chavez v. Villa**
Superior Court Case No. 25CECG03165

Hearing Date: July 8, 2026 (Dept. 403)

Motion: Defendant BDHOV, LP's Demurrer to the Complaint

Tentative Ruling:

To take off calendar as moot, due to plaintiff's filing of a First Amended Complaint on May 15, 2026. (*Sylmar Air Conditioning v. Pueblo Contracting Services, Inc.* (2004) 122 Cal.App.4th 1049, 1054; *People ex rel. Strathmann v. Acacia Research Corp.* (2012) 210 Cal.App.4th 487, 506.) Any challenges to the amended pleading must be raised by new motion(s).

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC **on** July 7, 2026.
(Judge's initials) (Date)